

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANDRES MARTINEZ DEJESUS,

Plaintiff,

-against-

DAVID SAMMARCO, and ALFREDO VALENTIN,
CITY OF NEW YORK and NEW YORK CITY POLICE
DEPARTMENT,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates BRONX
County as place of venue

SUMMONS

The basis of the venue is:
Situs of the Occurrence

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 29, 2016
New York, New York

Yours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEK

By: _____
NICHOLAS ELEFTERAKIS, Esq.,
Attorneys for the Plaintiff

111 John Street, Suite 1100
New York, New York 10038
(212) 532-1116

Failure to respond, a judgment will be against you, by default and interest from October 11, 2015

Defendants:

CITY OF NEW YORK

100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, NY 10007

DAVID SAMMARCO

NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, NY 10007

ALFREDO VALENTIN

NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANDRES MARTINEZ DEJESUS,

Index No.:
Date Purchased:

Plaintiff,

-against-

VERIFIED COMPLAINT

DAVID SAMMARCO, and ALFREDO VALENTIN,
CITY OF NEW YORK and NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

-----X

Plaintiff, ANDRES MARTINEZ DEJESUS, by his attorneys, ELEFTERAKIS,
ELEFTERAKIS & PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action arises under the United States Constitution, particularly the Fourth, Sixth and Fourteenth Amendments, as well as the due process and equal protection clauses of the Constitution of the United States, under federal law, particular the Civil Rights Act, Title 42, of the United States Code, Section 1983, and under the laws of the State and City of New York.
2. That on or about January 6, 2016, and within ninety (90) days after the claim arose, Plaintiff served, presented, and filed a duly sworn Notice of Claim, in writing, upon defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.
3. A hearing pursuant to §50(h) of the General Municipal Law has been held or waived.
4. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on Plaintiff's claim.
5. That this action has been commenced within one year and ninety days of the accrual of the cause of action.

AS AND FOR THE FIRST CAUSE OF ACTION

[False Arrest]

6. That at all times hereinafter mentioned, the plaintiff, ANDRES MARTINEZ DEJESUS, was and still is a resident of the State of New York and Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "5" inclusive with the same force and effect as if more fully set forth at length herein.

7. That at all times hereinafter mentioned and upon information and belief, defendant, CITY OF NEW YORK (hereinafter referred to as "CITY") was and still is a municipal corporation duly organized and existing pursuant to the laws of the State of New York.

8. That at all times hereinafter mentioned and upon information and belief, defendant, CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY

POLICE DEPARTMENT (hereinafter as “NYPD”), subject to the statutes, rules, laws, regulations and ordinances enacted thereof.

9. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT employed DAVID SAMMARCO and ALFREDO VALENTIN – Police Officers, as agents, servants and/or employees.

10. That at all times hereinafter mentioned and upon information and belief, the defendants DAVID SAMMARCO and ALFREDO VALENTIN, were appointed, employed and acting as police officers of the NEW YORK CITY POLICE DEPARTMENT, and assigned to the 47th Precinct, Bronx, New York.

11. That at all times hereinafter mentioned and upon information and belief, the aforementioned police officers are known to the defendants NYPD and CITY OF NEW YORK.

12. That at all times hereinafter mentioned and upon information and belief, on the sidewalk adjacent to the premises known as the Edenwald Houses on Schieffelin Avenue between 229th Street and Baychester Avenue in the Borough of the Bronx, County of Bronx, City and State of New York (hereinafter referred to as the “subject premises”) was and still is a public area.

13. That on or about October 11, 2015, Plaintiff, ANDRES MARTINEZ DEJESUS, was lawfully and peacefully walking at or near subject premises.

14. That on or about October 11, 2015, Defendants DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were present and on duty in the vicinity of subject premises as

part of his regulation and official employment as a police officers for defendant, THE CITY OF NEW YORK.

15. That on October 11, 2015, upon information and belief, Plaintiff, ANDRES MARTINEZ DEJESUS was walking alone, falsely placed under arrest, handcuffed, removed from the scene and taken into custody by the police and wrongfully detained at the 47th Precinct against his will and without a valid warrant for said arrest.

16. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, plaintiff, ANDRES MARTINEZ DEJESUS was falsely arrested by defendants, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., while acting as agents, servants and/or employees of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

17. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

18. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, defendants DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were acting within the course of their employment by defendants the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

19. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, the false arrest on the plaintiff was without probable cause and was not the result of an appropriate arrest.

20. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, the false arrest was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. The above mentioned incident that occurred on the above mentioned date and time, occurred without any fault of the Plaintiff.

22. The cause of the abovementioned incident was caused wholly, negligently and carelessly on the part of the Defendants, and without any contribution on the part of the Plaintiff.

23. That by reason of the wrongful acts and omissions on the part of the defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O, CITY, and NYPD, the plaintiff ANDRES MARTINEZ DEJESUS, has suffered and will continue to suffer pain and agony in mind and body and is and will continue to be unable to attend to his daily duties and responsibilities.

24. That as a result of the conduct of the defendants, the plaintiff was caused to sustain emotional upset and distress, loss of reputation, defamation of character, damage to reputation and credit, humiliation, shame, indignity and mental anguish in his public and private life, loss of liberty, deprivation of freedom, denial of due process of the law, denial of equal protection of the law and deprivation of his civil rights as secured by the Constitutions of the United States, the State and City of New York.

25. The conduct of the defendants deprive the plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

a. The right of Plaintiff to be secure in his home, person and effects against unreasonable search, seizure and arrest under the Fourth and Fourteenth Amendments to the Constitution of the United States;

b. The right of Plaintiff to be informed of a valid nature and cause of the accusation against him substantial enough to result in an arrest and to the assistance of legal counsel, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States;

c. The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws, secured by the Fourteenth Amendment to the Constitution of the United States;

d. The right to be and remain free from the deliberate public and private humiliation inflicted upon him by the defendants and free from their verbal and emotionally, cruel, inhuman and unusual punishment, secured by the due process clause of the Fourteenth Amendments to the Constitution of the United States.

e. The right to be kept free from false arrest and wrongful detention.

26. By reason of the foregoing, the plaintiff, ANDRES MARTINEZ DEJESUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR THE SECOND CAUSE OF ACTION

[False Imprisonment]

27. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs “1” through “26” inclusive with the same force and effect as if more fully set forth at length herein.

28. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, ANDRES MARTINEZ DEJESUS.

29. That on October 11, 2015, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O, while acting within the scope of their employment, intentionally confined the plaintiff, ANDRES MARTINEZ DEJESUS, against his will and said confinement was not privileged.

30. As a result of the aforesaid arrest, plaintiff, ANDRES MARTINEZ DEJESUS was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned in a holding cell owned, operated, maintained and controlled by the defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT for an unreasonable amount of time and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

31. Without a valid warrant, therefore the defendants, individually and/or in concert with each other caused the plaintiff to be falsely arrested, wrongfully detained or imprisoned,

illegally searched Plaintiff's vehicle and being taken into custody and held at the 47th Precinct in the Bronx, New York.

32. Upon information and belief, Defendants held Plaintiff in their custody and restrained him from his liberty in so deliberately indifferent manner such that Plaintiff suffered from emotional distress, shame and humiliation.

33. As a further result of the deprivation of plaintiff ANDRES MARTINEZ DEJESUS's right to be free from the deprivation of rights guaranteed to him by the Fourth, Fifth and Fourteenth Amendment to the United States Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

34. On or about October 11, 2015, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 43 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

35. By reason of the foregoing, the plaintiff, ANDRES MARTINEZ DEJESUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR THE THIRD CAUSE OF ACTION

[Negligence]

36. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That on October 11, 2015, upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O, were negligent, reckless and careless in assaulting, battery and in violating the civil rights of the plaintiff, ANDRES MARTINEZ DEJESUS.

38. That defendants had a duty to use reasonable care in the stopping, detaining and arrest of plaintiff.

39. That the defendants had a duty to ensure plaintiff was safely stopped, detained and arrested.

40. The defendants were negligent in failing to use reasonable care in the detainment, confinement and prosecution of the plaintiff, ANDRES MARTINEZ DEJESUS on or about October 11, 2015.

41. The defendants, by their police officers, agents, servants and/or employees in pursuance of their duties and employment as such, and in the course and within the scope of their employment, and without just cause or provocation, wrongfully, unlawfully, willfully, wantonly and negligently detained, handcuffed, falsely arrested and imprisoned plaintiff, thereby causing the plaintiff to sustain injuries and damages as set forth herein. The arrest was unnecessary and was not required by any act on part of the Plaintiff and was unnecessarily committed by said police officers as permitted by law; that the defendants did into exercise reasonable care and diligence in the section, engagement and employment of its police officers who unlawfully detained, handcuffed, falsely arrested and imprisoned the Plaintiff; that the defendants

authorized, permitted and rectified the unlawful and negligent acts of defendants, its agents, servants and/or employees, herein before alleged.

42. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

43. That as a result of the foregoing, Plaintiff's serious personal injuries caused him great pain, discomfort, anguish, and emotional distress.

44. The abovementioned incident that occurred on the abovementioned date and time, occurred without any fault of the Plaintiff.

45. The cause of the abovementioned incident was caused wholly, negligently and carelessly on the part of the Defendants, and without any contribution on the part of the Plaintiff.

46. By reason of the foregoing, the plaintiff, ANDRES MARTINEZ DEJESUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

[Negligent Hiring and Retention]

47. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs “1” through “46” inclusive with the same force and effect as if more fully set forth at length herein.

48. That at all times hereinafter mentioned and upon information and belief, defendants CITY and NYPD had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.

49. In addition, the defendant CITY, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

50. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of the Bronx, and under the authority of their office as police officers of said state, city and county.

51. The defendant, CITY OF NEW YORK failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute

established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

52. That on or about October 11, 2015, and prior thereto, the CITY OF NEW YORK, in violation of 42 U.S.C. § 1983 caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant Officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting himself in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

53. That respondents, their agents, servants and/or employees were negligent in failing to use due and reasonable care and judgment in hiring, retaining and continuing to employ as Police Officers, persons who were unfit to serve as Police Officers and who they knew or should have known through proper background investigations, posed a danger to the public and lacked the proper temperament to be Police Officers; and

54. That respondents, their agents, servants and/or employees were negligent in failing to use due and reasonable care in training and instructing their Police Officers by not exercising the necessary and required care in instructing them regarding their behavior and conduct as Policemen and representative of respondents and in the proper performance of their duties.

55. The defendants, by their police officers, agents, servants and/or employees in pursuance of their duties and employment as such, and in the course and within the scope of their employment, and without just cause or provocation, wrongfully, unlawfully, willfully, wantonly

and negligently detained, handcuffed, falsely arrested and imprisoned plaintiff, thereby causing the plaintiff to sustain injuries and damages as set forth herein. The arrest was unnecessary and was not required by any act on part of the Plaintiff and was unnecessarily committed by said Police Officers as permitted by law; that the defendants did not exercise reasonable care and diligence in the selection, engagement and employment of its police officers who unlawfully detained, handcuffed, falsely arrested and imprisoned the Plaintiff; that the defendants authorized, permitted and rectified the unlawful and negligent acts of defendants, its agents, servants and/or employees, herein before alleged.

56. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful and improper conduct of defendants DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., and continue to employ them and allowed them to be in contact with the public at large.

57. That as a result of the foregoing, Plaintiff's serious personal injuries caused him great pain, discomfort, anguish, and emotional distress.

58. The abovementioned incident that occurred on the abovementioned date and time, occurred without any fault of the Plaintiff.

59. The cause of the abovementioned incident was caused wholly, negligently and carelessly on the part of the Defendant, and without any contribution on the part of the Plaintiff.

60. By reason of the foregoing, the plaintiff, ANDRES MARTINEZ DEJESUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

[Civil Rights Violations Pursuant to 42 U.S.C. § 1983]

61. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs “1” through “60” inclusive with the same force and effect as if more fully set forth at length herein.

62. That upon information and belief, Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, ANDRES MARTINEZ DEJESUS, in violation of 42 U.S.C. section 1983 as well as other applicable state and federal laws.

63. That upon information and belief, Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were acting under the color of law and within the scope of their authority, deprived the plaintiff, ANDRES MARTINEZ DEJESUS, of liberty without due process and without reasonable cause in violation of 42 U.S.C. section 1983 as well as other applicable state and federal laws/

64. That upon information and belief, defendants deprived the plaintiff, ANDRES MARTINEZ DEJESUS, by their actions of his civil rights as guaranteed by statute.

65. That upon information and belief, the assault and battery was in violation of the civil rights of the plaintiff, ANDRES MARTINEZ DEJESUS, more particularly 42 U.S.C. section 1983 as well as other applicable state and federal laws.

66. That upon information and belief, the deprivation by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were acting under the color of law and within their authority as law enforcement officers within the employment of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

67. That upon information and belief, the defendants' actions were not privileged or immune.

68. That upon information and belief, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., were not acting with immunity when they deprived the plaintiff, ANDRES MARTINEZ DEJESUS, of his civil rights.

69. The defendants, by their police officers, agents, servants and/or employees in pursuance of their duties and employment as such, and in the course and within the scope of their employment, violated Plaintiffs rights in False Arrest, False Imprisonment, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, Violation of Civil Rights in accordance with 42 USC 1983, Negligence, Negligence in the training, hiring, supervision, and retention of police officers/detectives; and further that the claimant ANDRES MARTINEZ DEJESUS was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused claimant ANDRES MARTINEZ DEJESUS to be so deprived and other and further violations of the claimant's rights and privileges secured to them under the Constitutions of the

United States of America and the State of New York. Negligence in failing to use such care in the performance of police duties as reasonably prudent and careful police would have used under similar circumstances. Negligence of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in hiring and retaining persons who were unfit to serve as police officers/detectives; in that Respondents THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT its agents, servants and/or employees, failed to exercise reasonable precautions in employing said police officers/detectives by failing to properly investigate their background. Negligence of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in the training and instruction of its police officers/detectives by not exercising care in instructing them as to their department, behavior and conduct as police officers/detectives, especially regarding the abuse of power while in the field; to improperly supervise officers/detectives in the field, including the officers/detectives herein, as well as in the staffing, administration, and processing of persons suspected of violating criminal laws of this State, which allowed claimant to be arrested and imprisoned on October 11, 2015.

70. That as a result of the foregoing, Plaintiff suffered great pain, discomfort, anguish, and emotional distress.

71. The abovementioned incident that occurred on the abovementioned date and time, occurred without any fault of the Plaintiff.

72. The cause of the abovementioned incident was caused wholly, negligently and carelessly on the part of the Defendant, and without any contribution on the part of the Plaintiff.

73. That as a result of the foregoing, Plaintiff is entitled to judgment against defendant for money damages in a sum which is in excess of the jurisdictional limits of all lower

Courts that would otherwise have jurisdiction, plus costs and disbursements, and any such other and further relief which is just, equitable, and proper.

AS AND FOR A SIXTH CAUSE OF ACTION

[Violation of Right to be Free from Unreasonable Searches and Seizures]

74. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs “1” through “73” inclusive with the same force and effect as if more fully set forth at length herein.

75. That on or about October 11, 2015, at or near subject location, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the United States, the plaintiff ANDRES MARTINEZ DEJESUS, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the plaintiff, ANDRES MARTINEZ DEJESUS, even though the defendants knew or should have known that the plaintiff was wholly innocent.

76. That on or about October 11, 2015, at or near subject location, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the United States, plaintiff's motor vehicle, was unlawfully searched by the defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the plaintiff's motor vehicle, even though the defendants knew or should have known that the plaintiff was wholly innocent.

77. That by the reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to the plaintiff's great damage.

78. That by reason of his unlawful search and seizure, the plaintiff, ANDRES MARTINEZ DEJESUS, has been damaged in an amount exceeding the jurisdictional limits of this Court, to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
[INTENTIONAL TORT]

79. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "78" inclusive with the same force and effect as if more fully set forth at length herein.

80. On October 11, 2015, and at all times mentioned herein, Defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., committed an intentional tortious criminal assault upon the person of ANDRES MARTINEZ DEJESUS.

81. Each Defendant herein was acting as an agent for each other Defendant herein and as such each is vicariously liable for the others acts.

82. On October 11, 2015, and at all times mentioned herein, Defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., was a paid employee of the Defendant, THE CITY OF NEW YORK and was acting within the scope of their employment at the time they committed the intentional tortious act against the Plaintiff.

83. On October 11, 2015, and at all times mentioned herein, Defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., was a paid employee of the Defendant, THE NEW YORK CITY POLICE DEPARTMENT and was acting within the scope of their employment at the time they committed the intentional tortious act against the Plaintiff.

84. On October 11, 2015, while Plaintiff was lawfully present in the aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, beaten, battered by Defendants, DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O., and was caused to sustain severe and permanent injuries.

85. The aforementioned occurrence took place due to the negligence of the Defendants, their employees, agents, servants and/or licensees, acting within the scope of their authority and within the scope and in the furtherance of their agency.

86. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained, assaulted and battered.

87. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

88. That by reason of the foregoing and the negligence of the defendants, the Plaintiff **ANDRES MARTINEZ DEJESUS** was severely injured, bruised and wounded, some of which injuries are permanent in nature and duration, suffered, still suffers and will continue to suffer for some time physical pain and bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

89. That by reason of the foregoing, the Plaintiff, **ANDRES MARTINEZ DEJESUS**, was compelled and did the necessarily require medical aid and attention, and did necessarily pay and become liable for medicines and upon information and belief, the Plaintiff will necessarily incur similar expenses.

90. That by reason of the foregoing, the Plaintiff, **ANDRES MARTINEZ DEJESUS**, has been and will be unable to attend to usual occupation in the manner required.

91. By reason of the foregoing, the Plaintiff was caused to suffer severe and serious personal injuries to mind and body, and further, that the Plaintiff was subjected to great physical pain and mental anguish.

AS AND FOR AN EIGHTH CAUSE OF ACTION
[PUNITIVE DAMAGES]

92. Plaintiff repeats, reiterates and realleges each and every allegation set forth in Paragraphs "1" through "91" inclusive with the same force and effect as if more fully set forth at length herein.

93. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

94. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to DAVID SAMMARCO, P.O. and ALFREDO VALENTIN, P.O

95. By reason of the above actions of defendants, the plaintiff, ANDRES MARTINEZ DEJESUS, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

96. That as a result of the foregoing, Plaintiff is entitled to judgment against defendant for money damages in a sum which is in excess of the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, plus costs and disbursements, and any such other and further relief which is just, equitable, and proper.

WHEREFORE, plaintiff, ANDRES MARTINEZ DEJESUS, demands that judgment both compensatory and exemplary in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants as follows:

- a. on the **First Cause** of Action, plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;

- b. on the **Second Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- c. on the **Third Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- d. on the **Fourth Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- e. on the **Fifth Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- f. on the **Sixth Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- g. on the **Seventh Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary

in an amount exceeding the jurisdictional limits of all lower Courts;

- h. on the **Eighth Cause** of Action; plaintiff, ANDRES MARTINEZ DEJESUS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts;
- i. together with attorneys' fees plus costs and disbursements of this action; and for any and such other and further relief which is just, equitable, and proper.

Dated: November 29, 2016
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: _____

NICHOLAS ELEFTERAKIS

Attorneys for plaintiff

111 John Street, Suite 1100

New York, New York 10038

(P)(212) 532-1116

(F)(212) 532-1176

STATE OF NEW YORK)

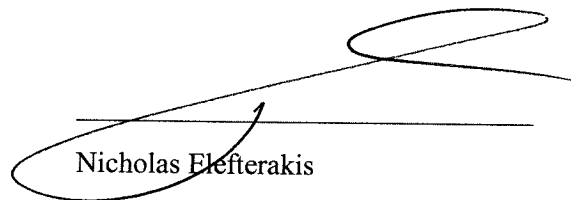
) ss

COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York

November 29, 2016



Nicholas Elefterakis

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ANDRES MARTINEZ DEJESUS

Plaintiff,

-against-

**DAVID SAMMARCO, and ALFREDO VALENTIN,
CITY OF NEW YORK and NEW YORK CITY POLICE
DEPARTMENT,**

Defendants.

**ELEFTERAKIS, ELEFTERAKIS & PANEK, P.C.
111 John Street, Suite 1100
New York, New York 10038
212.532.1116**

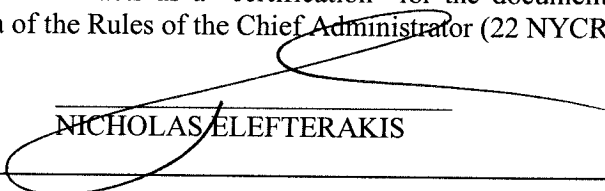
Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

NICHOLAS ELEFTERAKIS, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: November 29, 2016



NICHOLAS ELEFTERAKIS

PLEASE TAKE NOTICE

() that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of the within Entry named Court on

() that an Order of which the within is a true copy will be presented for
Notice of settlement to the Hon. one of the Judges of the Settlement within named Court,
on

**ELEFTERAKIS, ELEFTERAKIS & PANEK, P.C.
111 John Street, Suite 1100
New York, New York 10038
212.532.1116**